

26STCV08045 26STCV08045

County: los-angeles

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Case Number: 26STCV08045 Hearing Date: July 15, 2026 Dept: 406

JUAN ANTONIO MORAN,

Plaintiff,

v.

FCA US LLC; et al.,

Defendants.

Case No.: 26STCV08045

Hearing Date: July 15, 2026

[TENTATIVE]

order RE:

defendant's demurrer to complaint and
motion to strike

BACKGROUND

On April 16, 2026, December 22,
2021, Plaintiff filed this "lemon law" action against Defendant FCA US LLC
(FCA). Plaintiff's operative Complaint asserts causes of action for violations
of the Song-Beverly Act and fraudulent concealment.

On June 17, 2025, Defendant filed

the instant demurrer to the First Amended Complaint (FAC). Plaintiff filed opposition on July 1, 2026. Defendant filed a reply on July 8, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendant has satisfied the meet and confer requirement.

DISCUSSION

I.

Fraudulent Concealment

Economic loss consists of “damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.” (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.) The economic loss rule requires a purchaser to recover in

contract for purely economic loss due to disappointed expectations, unless the purchaser “can demonstrate harm above and beyond a broken contractual promise,” such as some form of personal injury or damage to property other than the defective product itself. (Ibid.) The economic loss rule exists to prevent “the law of contract and the law of tort from dissolving one into the other.” (Ibid.) “An omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty.” (Erlach v. Menezes (1999) 21 Cal.4th 543, 551.)

“A plaintiff may assert a fraudulent concealment cause of action based on conduct occurring in the course of a contractual relationship if the elements of the claim can be established independently of the parties' contractual rights and obligations, and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 13.)

In this case, Plaintiff has not alleged that he suffered any physical injury or that there was any damage to property other than to the subject vehicle. Plaintiff has not alleged a breach of duty beyond contractual obligations. The fraud claim is premised on Defendant's failure to provide a vehicle free of defects, which is a breach of warranty. Plaintiff has alleged only economic loss. Therefore, the fraudulent concealment claim is barred by the economic loss rule.

Moreover, a duty to disclose only arises in “direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 902.) Here, there were no direct dealings between Plaintiff and FCA. Plaintiff purchased the vehicle from a dealership. “[Plaintiff] did not transact with [FCA] in any way.” (Id. at p. 903.) The fraudulent concealment claim fails for this independent reason.

CONCLUSION

Defendant's demurrer is SUSTAINED without leave to amend as to the fraud cause of action.